

**Torts**  
**Harris v. Jones**  
281 Md. 560, 380 A.2d 611 (1977)

## **Keyword Subject**

Intentional Infliction of Emotional Distress

## **Facts**

Plaintiff was an employee at GM under the supervision of Defendant. Plaintiff suffered from a condition that caused him to stutter and shake his head while trying to pronounce multi-syllable words. Over the course of five months, defendant approached at work and mocked plaintiff's stutter over 30 times. Defendant additionally reprimanded plaintiff two or three times a week, telling him to "not get nervous". Plaintiff requested a transfer multiple times but each time Defendant refused.

## **Procedural History**

Trial Court: In favor of plaintiff (\$3,500 compensatory damages and \$15,000 punitive damages)

Special Appeal: In favor of defendant (Judgement Overruled)

Appeal: In favor of defendant (Judgement Affirmed)

## **Issue**

Was the conduct intentional?

Was the conduct extreme and outrageous?

Was there a casual connection between the wrongful conduct and the emotional distress?

Was the emotional distress severe?

**Holding: Yes on all counts except the last; Judgment Affirmed**

**Principle**

**Reasoning**

**Separate Opinions**

**Notes**